

Court No. - 40

Case :- WRIT - C No. - 4991 of 2023

Petitioner :- Abdul Ahmad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prabhakar Dwivedi, Balram Jee Verma

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

On the request of Sri Chandra Shekhar Singh, learned counsel for the respondent no.2 to 4, the matter is passed over, so as to enable him to seek instructions in the matter.

Put up this matter again as fresh on 21.2.2023.

Order Date :- 14.2.2023

Dev/-

Court No. - 21

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Petitioner :- Abdul Ahmad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prabhakar Dwivedi, Balram Jee Verma

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

The petitioner has filed the instant petition praying for quashing of the order dated 25.06.2022 passed by Executive Engineer, Electricity Distribution Division, Khalilabad and the recovery certificate dated 11.01.2023 in a case of theft of electricity.

Counsel for the respondent Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.2.2023

Ruhi